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**South Wootton Junior Audit Report****Audit Date: 26 February 2020****Report: Year 2 visit 2****DPE: Linda Mortimer****School member: Headteacher – Georgie Earl**

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## 1. Visit details

The school's overall progress with GDPR compliance was discussed and this included checking that the school has key documents and policies in place. The new Dashboard on Knowledge Bank was also reviewed and this included a review of the DPE Best Practice areas, completing some Compliance Checklists, SLA tool, Record of Processing and demonstrating the Compliance Manager. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 6 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 5.1 below).

## Audit walk and findings on 26.2.20

**GDPR Policy:** The school does not currently have a GDPR Policy in place.

**Action:** School to adopt DPE model GDPR policy – Governors will meet on 16.3.20 when policy can be considered. Once ratified this policy should be published on the school's website.

**Privacy Notice:** Visitors and parents should be signposted at reception to the location of the school's Privacy Notice ie the school website.

**Action:** Provide a simple notice to direct visitors to the location of the school's Privacy Notice.

School to update the Privacy Notice with a more detailed list of third parties with whom they share personal data. An example list will be provided.

**Staff Set up on Knowledge Bank:** The school currently has the Headteacher and school secretary set up on Knowledge Bank.

**Action:** School to download CSV file from the 'User' tab on KB dashboard to set up all staff. This will allow the sharing of documents/policies via Compliance Manager.

**Staff Training:** Although all staff are aware of the importance of compliance with GDPR, and this is an agenda item at staff meetings and staff Inset, GDPR 101 online training is outstanding

**Action:** All senior staff including admin will complete GDPR 101 at time of September 2020 Inset (or earlier if possible) The three newly qualified teachers will complete GPDR 101 training as a matter of urgency.

**Staff Training Update:** A GDPR 20-minute refresher course will be available shortly on Knowledge Bank. DPE recommend that staff should refresh their training every 2 years.

**Governance:** The Headteacher provides a half termly report to the Governing Body which includes a detailed GDPR update. Typically, this will include the school's progress with GDPR compliance, details of any Data Breaches, SARs and Freedom of Information requests.

**Action:** At the time of the next meeting, the Headteacher will ask for a Governor to volunteer to take on responsibility for oversight of GDPR. It is suggested that the GDPR Governor completes the GDPR 101 online training.

**iPads:** Staff iPads are used for taking student images. The school does not use cameras. All iPads are password protected and accounted for on a regular basis.

**Action:** The Headteacher will check with ICT Technician that Find my iPad and Return to Factory Settings are installed on staff iPads. However, school has recently experienced an iPad, where 4-digit password could not be accessed, and the iPad had to be reset to factory settings via iTunes and this wiped the device.

**Consent Forms:** School to check current consent forms.

**Action:** School to review current consent form and check against DPE model consent form.

**Naming convention:** Work trays, files, displays and coat pegs use first names only. Exercise Books have both names.

**Action:** School will move to first name only on exercise books from September 2020 (or earlier if possible).

### **ACTION RE POLICIES**

DPE recommend that the following policies are considered for adoption by the school:

**Freedom of Information:** School to consider adopting the DPE model policy and should be published on the school's website.

**Freedom of Information Publication Scheme:** This was discussed and examples will be provided for the school to make reference to. More guidance about the Publication Scheme can be found under the News tab on the Knowledge Bank. This can be published on the school's website.

**School to consider adopting the following DPE model policies and share with staff via Compliance Manager:**

- Clear Desk and Screen Policy
- Working away from School Policy
- Management of Passwords Policy
- Photo and Video Guidelines
- Records Management Policy
- Information Classification Policy

**Electronic Communication:** The school uses Office 365 which offers its own robust encryption. The school is working towards using Office 365 'Teams' whereby specific staff teams will be set up with relevant and rigorous permissions in place. For example, Teams will include; Pastoral Team, SEND Team, Safeguarding Team etc.

**Image Retention:** School is moving towards storing images in the Cloud via the facilities offered by Office 365. The Headteacher has performed a thorough cleanse in the last 12 months. Moving forward, it was explained that it is permissible to retain some images for historical purposes, through secure archiving.

**SEND Record Management:** All SEND paperwork is scanned and attached to student records on Pupil Asset, therefore limiting access to personal/confidential data.

**Management of Safeguarding Documents:** The school uses 'Safeguard' which is provided by Smoothwall. Documents are scanned on to the system and then hard copies are destroyed.

**Management of Student Assessment:** The school makes full use of the cloud based PIXL Assessment module, which means that no hard copies of assessments are generated. This limits access to personal/confidential data.

**Management of Communication with Parents:** The school uses Pupil Asset to manage cashless catering, as well as providing communication to parents via text and email.

**Laptops:** All staff laptops have recently been replaced and are using Windows 10 . They are accounted for regularly and entered onto an asset register.

**Safe Document Destruction:** School uses Veolia for secure document disposal and these are collected as and when required.

**School Kitchen:** Operated by Norse Catering. All allergy information is kept securely.

**First Aid Records:** Are stored securely in the main office filing cabinet. Medical equipment ie asthma pumps and epi pens are also kept in the main office.

**Medical Health Care Plans:** Are stored in unmarked folders in a discreet area of the classroom

#### **Actions from Walk**

**Main Office:** Lists of students taking part in Maths Booster Classes are on clear display. Such lists should be stored securely and use first name only.

**Staffroom:** Student's Literacy folders, and the Sports Coach's photo consent forms were found in staff pigeonholes. Remind staff to not use this area to store confidential/sensitive student information.

**Year 4N Classroom:** Completed permission slips found in an in-tray. Remind staff to store securely.

**Year 4C Classroom:** Sports Coach's laptop left unlocked in an empty classroom. Remind staff Leave it / Lock it. Student information sheets left in an in-tray. These had been used the previous day for a parents evening and should have been stored securely.  
SEND file on teacher's desk. File contained confidential student information and should be stored securely at all times.

**Year 5C Classroom:** PE Kit list detailing students first name and surname. Please amend to first name only.

## **2. Compliance actions that should now be completed**

### **Initial documents:**

- **Privacy Notice**
- **GDPR Policy**
- **Data Breach Procedure**
- **SAR procedure**
- **Photo and Video consent, guidelines and records**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

#### **The following should also be completed:**

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;

- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

## 2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016\\_IRMS\\_Toolkit\\_for\\_Schools\\_v5\\_Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf)
- DfE toolkit  
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment\\_data/file/747620/Data\\_Protection\\_Toolkit\\_for\\_Schools\\_OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

## 2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

## 2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

## 2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

## 3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

## 4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

## 5. Next steps

### Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

#### 5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

## 6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>